

IndiaCode

The Salary, Allowances and Pension of Members of Parliament Act, 1954

(ACT NO. 30 OF 1954)

[*As on 15th April, 2026*]

LIST OF AMENDING ACTS

1. The Salaries and Allowances of Members of Parliament (Amendment) Act, 1955 (9 of 1955).
2. The Salaries and Allowances of Members of Parliament (Amendment) Act, 1958 (55 of 1958).
3. The Repealing and Amending Act, 1960 (58 of 1960).
4. The Salaries and Allowances of Members of Parliament (Amendment) Act, 1964 (26 of 1964).
5. The Salaries and Allowances of Members of Parliament (Amendment) Act, 1969 (25 of 1969).
6. The Salaries and Allowances of Members of Parliament (Amendment) Act, 1972 (29 of 1972).
7. The Salaries and Allowances of Members of Parliament (Amendment) Act, 1974 (65 of 1974).
8. The Salaries and Allowances of Members of Parliament (Amendment) Act, 1975 (48 of 1975).
9. The Salaries and Allowances of Members of Parliament (Amendment) Act, 1976 (105 of 1976).
10. The Salary and Allowances of Leaders of Opposition in Parliament Act, I977 (33 of 1977).
11. The Salary, Allowances and Pension of Members of Parliament (Amendment) Act, 1981 (21 of 1981).
12. The Salary, Allowances and Pension of Members of Parliament (Amendment) Act, 1982 (35 of 1982).
13. The Salary, Allowances and Pension of Members of Parliament (Second Amendment) Act, 1982 (61 of 1982).
14. The Salary, Allowances and Pension of Members of Parliament (Amendment)Act, 1983 (22 of 1983).
15. The Salary, Allowances and Pension of Members of Parliament (Amendment) Act, 1985 (74 of 1985).
16. The Salary, Allowances and Pension of Members of Parliament (Amendment) Act, 1988 (60 of 1988).
17. The Salary, Allowances and Pension of Members of Parliament (Amendment) Act, 1989 (30 of 1989).
18. The Salary, Allowances and Pension of Members of Parliament (Amendment) Act, **1992** (3 of 1993).
19. The Salary, Allowances and Pension of Members of Parliament (Amendment) Act, 1993 (48 of 1993).
20. The Salary, Allowances and Pension of Members of Parliament (Amendment) Act, 1995 (18 of 1995).
21. The Salary. Allowances and Pension of Members of Parliament (Amendment) Act, 1998 (28 of 1998).
22. The Salary, Allowances and Pension of Members of Parliament (Amendment) Act, 1999 (16 of 1999).
23. The Salary, Allowances and Pension of Members of Parliament (Amendment) Act, 2000 (7 of 2000).

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24. The Salary, Allowances and Pension of Members of Parliament (Amendment) Act, 2001 (46 of 2001).

25. The Salary, Allowances and Pension of members of Parliament (Amendment) Act, 2002 (34 of 2002).

26. The Salary, Allowances and Pension of Members of Parliament (Amendment) Act, 2003 (9 of 2004).

27. The Salary, Allowances and Pension of Members of Parliament (Amendment) Act, 2006 (40 of 2006).

28. The Salary, Allowances and Pension of Members of Parliament (Amendment) Act, 2006 (37 of 2010).

LIST OF ABBREVIATIONS USED

Cl.,cls.	*for*	Clause, clauses.
Ins.	,,	Inserted.
Notifn.	,,	Notification.
S., ss.	,,	Section, sections.
Sch.	,,	Schedule.
Subs.	,,	Substituted.
w.e.f.	,,	with effect from.

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THE SALARY, ALLOWANCES AND PENSION OF MEMBERS OF PARLIAMENT ACT, 1954

ARRANGEMENT OF SECTIONS

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THE SALARY, ALLOWANCES AND PENSION OF MEMBERS OF PARLIAMENT ACT, 1954

ACT NO. 30 OF 1954

[22*nd May*, 1954.]

An Act to provide for the [1][salary, allowances and pension] of Members of Parliament.

BE it enacted by Parliament in the Fifth Year of the Republic of India as follows:—

1. Short title and commencement.—(*1*) This Act may be called the [2][Salary, Allowances and Pension] of Members of Parliament Act, 1954.

(*2*) It shall come into force on the first day of June, 1954.

2. Definitions.— In this Act,—

(*a*) "committee" means a Committee of either House of Parliament, and includes a Joint Committee of both Houses;

[3][(*aa*) "dependent" means any of the following relatives of a deceased member, namely:—

(*i*) a minor legitimate son, and an unmarried legitimate daughter and a widowed mother; or

(*ii*) if wholly dependent on the earnings of the member at the time of his death, a son or a daughter who has attained the age of eighteen years and who is infirm; or

(*iii*) if wholly or in part dependent on the earnings of the member at the time of his death,—

(*a*) the parent; or

(*b*) a minor brother or an unmarried sister; or

(*c*) a widowed daughter-in-law; or

(*d*) a minor child of a pre-deceased son; or

(*e*) a minor child of a pre-deceased daughter where no parent of the child is alive; or

(*f*) the paternal grandparent if no parent of the member is alive; or

(*g*) such other person as may be specified by the rules made under section 9 by the Joint Committee;]

(*b*) "member" means a member of either House of Parliament, [4][but, save as otherwise expressly provided in this Act, does not include]—

(*i*) a Minister as defined in the Salaries and Allowances of Ministers Act, 1952 (58 of 1952); [5]***

[6][(*ii*) a Leader of the Opposition as defined in the Salary and Allowances of Leaders of Opposition in Parliament Act, 1977 (33 of 1977); and]

[7][(*iii*)] an officer of Parliament as defined in the Salaries and Allowances of Officers of Parliament Act, 1953 (20 of 1953);

1. Subs. by Act 105 of 1976, s. 2, for "salaries and allowances" (w.e.f. 9-9-1976).
2. Subs. by s. 3, *ibid*., for "Salaries and Allowances" (w.e.f. 9-9-1976).
3. Ins. by Act 9 of 2004, s. 2 (w.e.f. 9-1-2004).
4. Subs. by Act 55 of 1958, s. 2, for "but does not include" (w.e.f. 30-12-1958).
5. The word "and" omitted by Act 33 of 1977, s. 11 (w.e.f. 1-11-1977).
6. Ins. by s. 11, *ibid.* (w.e.f. 1-11-1977).
7. Sub-clause (*ii*) re-numbered as sub-clause (*iii*) thereof by s. 11, *ibid*. (w.e.f. 1-11-1977).

(*c*) "new member" means a member who takes his seat in either House of Parliament after the commencement of this Act and includes a member who is re-elected or re-nominated;

(*d*) "period of residence on duty" means the period during which a member resides at a place where a session of a House of Parliament or a sitting of a committee is held or where any other business connected with his duties as such member is transacted, for the purpose of attending such session or sitting or for the purpose of attending to such other business, and includes—

(*i*) in the case of session of a House of Parliament, a period of such residence, not exceeding three days, immediately preceding the commencement of the session and a period of such residence, not exceeding three days, immediately succeeding the [1][date on which the House of Parliament is adjourned *sine die* or for a period exceeding seven days]; and

(*ii*) in the case of a sitting of a committee or any other business a period of such residence, not exceeding two days, immediately preceding the commencement of the business of the committee or other business and a period of such residence, not exceeding two days, immediately succeeding the conclusion of the business of the committee or other business;

Explanation.—A member who ordinarily resides at a place where a session of a House of Parliament or a sitting of a committee is held or where any other business connected with his duties as such member is transacted shall, for the duration of the session or sitting or the time occupied for the transaction of other business (including the three or two days immediately preceding or succeeding), be deemed to reside at such place for the purpose of attending such session or sitting or, as the case may be, for the purpose of attending to such other business;

(*e*) "term of office" means,—

(*a*) in relation to a person who is a member at the commencement of this Act, the period beginning with such commencement and ending with the date on which his seat becomes vacant;

[2][(*b*) in relation to a new member,—

(*i*) where such new member is a member of the Council of States elected in a biennial election, or nominated, to that House, the period beginning with the date of publication of the notification in the Official Gazette notifying his name under section 71 of the Representation of the People Act, 1951 (43 of 1951); or

(*ii*) where such new member is a member of the House of the People elected in a general election held for the purpose of constituting a new House of the People, the period beginning with the date of publication of the notification of the Election Commission under section 73 of the said Act; or

(*iii*) where such new member is a member of either House of Parliament elected in a bye-election to that House or a member nominated to the House of the People, the period beginning with the date of his election referred to in section 67A of the said Act or, as the case may be, the date of his nomination,

and ending with, in each such case, the date on which his seat becomes vacant.]

3. Salaries and daily allowances.— [3][(*1*)] A member shall be entitled to receive [4][a salary at the rate of [5][one lakh rupees] per mensem] during the whole of his term of office [6][and subject to any rules made under this Act] [7][an allowance at the rate of two thousand rupees for each day] during any period of residence on duty:

1. Subs. by Act 55 of 1958, s. 2, for "end of the session" (w.e.f. 1-6-1954).
2. Subs. by Act 105 of 1976, s. 4, for sub-clause (*b*) (w.e.f. 9-9-1970).
3. Section 3 numbered as sub-section (*1*) thereof by Act 13 of 2018, s. 142 (w.e.f. 1-4-2018).
4. Subs. by Act 37 of 2010, s. 2, for "a salary at the rate of sixteen thousand rupees per mensem" (w.e.f. 1-10-2010).
5. Subs. by Act 13 of 2018, s. 142, for "fifty thousand rupees" (w.e.f. 1-4-2018).
6. Subs. by Act 55 of 1958, s. 3, for "plus" ((w.e.f. 1-6-1954).
7. Subs. by Act 37 of 2010, s. 2, for "an allowance at the rate of one thousand rupees for each day" (w.e.f. 1-10-2010).

[1][(*1A*) Notwithstanding anything contained in sub-section (*1*), the salary payable to Members of Parliament under sub-section (*1*) shall be reduced by thirty per cent. For a period of one year commencing from the 1st April, 2020, to meet the exigencies arising out of Corona Virus (COVID-19) pandemic.]

[2][Provided that no member shall be entitled to the aforesaid allowance unless he signs the register, maintained for this purpose by the Secretariat of the House of the People or, as the case may be, Council of States, on all the days (except intervening holidays for which no such signing is required) of the session of the House for which the allowance is claimed:]

[3][Provided further that the rates of salary specified in this section shall be applicable from the 18th day of May, 2009.]

[4][(*2*) The salary and daily allowance of members shall be increased after every five years commencing from 1st April, 2023 on the basis of Cost Inflation Index provided under clause (*v*) of *Explanation* to section 48 of the Income-tax Act, 1961 (43 of 1961).]

4. Travelling allowances.—(*1*) There shall be paid to each member in respect of every journey performed by him [5][in India] for the purpose of attending a session of a House of Parliament or a meeting of a committee or for the purpose of attending to any other business connected with his duties as a member, from his usual place of residence to the place where the session or the meeting is to be held or the other business is to be transacted and for the return journey from such place to his usual place of residence—

[6]* * * * *

(*b*) if the journey is performed by air, an amount equal to one [7][***] air fare for each such journey;

(*c*) if the journey or any part thereof cannot be performed by rail or air—

[8][(*i*) where the journey or any part thereof is performed by steamer, an amount equal to one [9]*** fare (without diet) for the highest class in the steamer for each such journey or part thereof, or, if there is no regular steamer service, such amount for each such journey or part thereof as may be prescribed by rules made under section 9;]

(*ii*) where the journey or any part thereof is performed by road, [10][a road mileage at the rate of sixteen rupees per kilometre] for each such journey or part thereof:

[11][Provided that when Parliament is in session and the spouse of a Member, if any, performs such journey or part thereof by road, unaccompanied by such Member, in respect of which such spouse has been allowed to travel by air or partly by air and partly by rail from the usual place of residence of the Member to Delhi or back under sub-section (*2*) of section 6B, the road mileage prescribed under this sub-clause shall be allowed to such Member for such journey or part thereof, subject to the condition that the total number of such journeys shall not exceed eight in a year]:

[12][Provided further that where a member performs journey by road in Delhi from and to an aerodrome, he shall be paid a minimum amount of one hundred and twenty rupees for each such journey.]

[13]* * * * *

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1. Ins. by Act 19 of 2020, s. 2 (w.e.f. 7-4-2020).
2. Ins. by Act 48 of 1993, s. 2 (w.e.f. 9-6-1993).
3. Subs. by Act 37 of 2010, s. 2, for the second proviso (w.e.f. 1-10-2010).
4. Ins. by Act 13 of 2018, s. 142 (w.e.f. 1-4-2018).
5. Ins. by Act 55 of 1958, s. 4 (w.e.f. 1-4-1955).
6. Cl. (*a*) omitted by Act 13 of 2018, by s. 143 (w.e.f. 1-4-2018).
7. The words "and one-fourth of the" omitted by s. 143, *ibid.* (w.e.f. 1-4-2018).
8. Subs. by Act 55 of 1958, s. 4, for sub-clause (*i*) (w.e.f. 1-6-1954).
9. The words "and three-fifth of the" omitted by Act 13 of 2018, s. 143 (w.e.f. 1-4-2018).
10. Subs. by Act 37 of 2010, s. 3, for "a road mileage at the rate of thirteen rupees per kilometer" (w.e.f. 1-10-2010).
11. Subs. by s. 3, *ibid*., for the first proviso (w.e.f. 1-10-2010).
12. Ins. by Act 48 of 1993, s. 3 (w.e.f. 9-6-1993).
13. The third proviso omitted by Act 37 of 2010, s. 3 (w.e.f. 1-10-2010).

Explanation.—For the purposes of sub-clause (*ii*) of clause (*c*) of this sub-section, the expression "journey" shall include the journey from and to the railway station, port or aerodrome to and from the usual place of residence of the member or, as the case may be, the residence of the member at the place where the session of the House of Parliament or a meeting of the committee is to be held or where any other business is to be transacted.

(*2*) Notwithstanding anything contained in sub-section (*1*), a member who performs a journey by road between places connected by rail or steamer, either wholly or in part, may draw the mileage allowance referred to in sub-clause (*ii*) of clause (*c*) of sub-section (*1*) in place of the travelling allowance which would have been admissible to him if he had travelled by rail or steamer, as the case may be.

[1][Provided that the total amount of travelling allowance drawn by such member for the entire journey shall not exceed the amount which would have been admissible to him had he performed such journey by rail or by steamer, as the case may be:

Provided further that the first proviso shall be applicable to such journey only where the places of the journey are connected by express, mail or superfast train:]

[2][Provided also that the first proviso shall not be applicable to a member who, in the opinion of the Chairman of the Council of States or, as the case may be, the Speaker of the House of the People, is so incapacitated physically and cannot travel by air or train:]

[3][Provided also that in case a member resides within a distance of three hundred kilometers from Delhi, he or his spouse, for the journey performed by him by road, may draw the mileage allowance referred to in sub-clause (*ii*) of clause (*c*) of sub-section (*1*) in place of the travelling allowance which would have been admissible to him had he performed such journey by rail or by road, as the case may be:

Provided also that in case a member resides in the States of Arunachal Pradesh, Assam, Manipur, Meghalaya, Mizoram, Nagaland, Sikkim or Tripura, he or his spouse may draw the mileage allowance referred to in sub-clause (*ii*) of clause (*c*) of sub-section (*1*) for journey performed by him by road from his residence in any of the said States to the nearest airport.]

[4][(*3*) There shall be paid to a member in respect of a journey performed by him in the course of a tour outside India undertaken in the discharge of his duties as such member, such travelling and daily allowances as may be prescribed by rules made under section 9.]

[5][(*4*) There shall be paid to a person—

(*a*) who has been elected in a biennial election as a member of the Council of States but the notification in the Official Gazette notifying his name under section 71 of the Representation of the People Act, 1951 (43 of 1951) has not been published in the Official Gazette; or

(*b*) who has been elected as a member of the House of the People in a general election held for the purpose of constituting a new House of the People but the notification in the Official Gazette notifying his name under section 73 of the Representation of the People Act, 1951(43 of 1951) has not been published in the Official Gazette; or

(*c*) who has been elected in a bye-election as a member of either House of Parliament or nominated as a member to either House of Parliament,

an amount equivalent to the fare in respect of every journey performed by him for coming to Delhi before the publication of notification referred to in clause (*a*) or clause (*b*), or election or nomination under clause (*c*):

Provided that in case the journey is performed by rail or steamer or road, he shall be entitled to the reimbursement of the fare or road mileage to which a member is entitled:

1. Ins. by Act 17 of 2000, s. 2 (w.e.f. 7-6-2000).
2. Ins. by Act 40 of 2006, s. 3 (w.e.f. 15-9-2006).
3. Ins. by Act 9 of 2004, s. 3 (w.e.f. 9-1-2004).
4. Ins. by Act 55 of 1958, s. 4 (w.e.f. 30-12-1958).
5. Ins. by Act 9 of 2004, s. 3 (w.e.f. 9-1-2004).

Provided further that in case he performs the journey by air, such journey shall be included for the purpose of counting thirty-two journeys referred to in the first proviso to sub-section (*2*) of section 5.]

5. Travelling allowances for intermediate journeys.—[1][(*1*)] Where a member absents himself for less than fifteen days during a session of a House of Parliament or a sitting of a committee for visiting any place in India, he shall be entitled to receive travelling allowances in respect of such journey to such place and for the return journey—

(*a*) if the journey is performed by rail, equal to [2][one first class fare] for each such journey irrespective of the class in which the member actually travels;

(*b*) [3][if the journey, being a journey during the sitting of the Committee] is performed by air, equal to one fare by air, for each such journey:

Provided that such travelling allowances shall not exceed the total amount of daily allowances which would have been admissible to such member under section 3 for the days of absence if he had not so remained absent:

[4][Provided further that nothing in the first proviso shall apply, if the member performs the journey by air for visiting any place in India not more than once during a sitting of the Committee;]

[5][(*1A*) Notwithstanding anything contained in sub-section (*1*), a member shall be entitled to receive travelling allowances in respect of every journey performed by air for visiting any place in India during the interval not exceeding [6][five days] between two sittings of a Department related Standing Committee when a House of Parliament is adjourned for a fixed period during the Budget Session:

Provided that such travelling allowances, excluding the air fare, shall not exceed the total amount of daily allowances which would have been admissible to such member under section 3 for the days of absence if he had not remained absent.]

[7][(*2*) Every member shall be entitled to an amount equal to the fare by air for each single journey by air (other than a journey referred to in section 4 or the second proviso to sub-section (*1*) of this section or section 6C) performed by him [8][either alone or along with spouse or any number of companions or relatives,] from any place in India to any other place in India during his term of office as such member:]

[9][Provided that the total number of such journeys under this sub-section shall be thirty-four journeys per year:

[10][Provided further that where the number of journeys performed by any member by air is [11][less than thirty-four], then, such number of journeys not performed by him shall be carried over to the following year:]

[12][Provided also that the spouse or companion of a member, as the case may be, may alone perform maximum eight journeys by air from any place of India to the place in India for the purpose of visiting such member and such journey shall be included for the purpose of counting [13][thirty-four journeys] referred to in the first proviso to sub-section (*2*):]

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1. Section 5 renumbered as sub-section (*1*) of that section by Act 105 of 1976, s. 5 (w.e.f. 9-9-1976).
2. Subs. by Act 9 of 1955, s. 2, for "one second class fare" (w.e.f. 1-4-1955).
3. Subs. by Act 74 of 1985, s. 3, for "if the journey" (w.e.f. 26-12-1985).
4. Subs. by s. 3, *ibid*., for the second proviso and the *Explanation* (w.e.f. 26-12-1985).
5. Ins. by Act 18 of 1995, s. 2 (w.e.f. 1-4-1995).
6. Subs. by Act 40 of 2006, s. 4, for "seven days" (w.e.f. 15-9-2006).
7. Subs. by Act 74 of 1985, s. 3, for sub-section (*2*) (w.e.f. 26-12-1985).
8. Subs. by Act 16 of 1999, s. 2, for "either alone or along with companion or spouse," (w.e.f. 22-3-1999).
9. Subs. by Act 40 of 2006, s. 4, for the first proviso (w.e.f. 15-9-2006).
10. The proviso ins. by Act 28 of 1998, s. 4 (w.e.f. 20-8-1998).
11. Subs. by Act 40 of 2006, s. 4, for "less than thirty-two" (w.e.f. 15-9-2006).
12. Ins. by Act 9 of 2004, s. 4 (w.e.f. 9-1-2004).
13. Subs. by Act 40 of 2006, s. 4, for "thirty-two journeys" (w.e.f. 15-9-2006).

[1][Provided also that in case any member avails a total number of journeys by air more than thirty-four, such journeys permissible to him, in the year, he may be allowed to adjust not exceeding eight such journeys from the entitled number of journeys which may accrue in his credit in the next following year.]

[2][(*3*) Notwithstanding anything contained in sub-section (*2*), there shall be paid to a member who, in the opinion of the Chairman of the Council of States or, as the case may be, the Speaker of the House of the People, is so incapacitated physically and, therefore cannot perform air or travel journey, road mileage for the entire journey.]

Explanation 1.—The provisions of clause (*c*) of sub-section (*1*) and sub-section (*2*) of section 4 shall, so far as may be, apply to travelling allowances payable under this section as they apply to travelling allowances payable under that section.

Explanation II.—For the purposes of this section, "year" means,—

(*i*) in the case of a person who is a member at the commencement of the Salary, Allowances and Pension of Members of Parliament (Amendment) Act, 1985 (74 of 1985), the year beginning with such commencement and each of the subsequent years;

(*ii*) in the case of a person who becomes a member after such commencement, the year beginning with the date on which his term of office as such member commences and each of the subsequent years.]]

[3][*Explanation III*.—For the purposes of sub-section (*2*), any journey performed by the [4]["spouse, companions or relatives shall be added in computing the limit of [5][thirty-four journeys] specified in the proviso to that sub-section.]

[6]**[5A. Transit accommodation.—**Where a person referred to in sub-section (*4*) of section 4 comes to Delhi, he shall be entitled to such transit accommodation for such period as may be specified by the rules made under clause (*ccc*) of sub-section (*3*) of section 9 by the Joint Committee.]

[7][**6. Free transit by railway**.—(*1*) Every member shall be provided with one free non-transferable [8][first class air-conditioned or executive class of any train] pass which shall entitle him to travel at any time by any railway in India.

Explanation.—[9][For the purposes of this sub-section and sections 6A and 6B], a member shall include a Minister as defined in the Salaries and Allowances of Ministers Act, 1952 (58 of 1952), [10][a Leader of the Opposition as defined in the Salary and Allowances of Leader of Opposition in Parliament Act, 1977 (33 of 1977)] and an officer of Parliament as defined in the Salaries and Allowances of Officers of Parliament Act, 1953 (20 of 1953), other than the Chairman of the Council of States.

(*2*) A free railway pass issued to a member under sub-section (*1*) shall be valid for the term of his office and on the expiration of such term, the pass shall be surrendered to the Secretary of the House of the People or the Council of States, as the case may be:

Provided that where any such pass is issued to a new member before he takes his seat in either House of Parliament, he shall be entitled to use the pass for attending a session of that House for taking his seat therein.

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1. Ins. by Act 40 of 2006, s. 4 (w.e.f. 15-9-2006).
2. Ins. by s. 4, *ibid*. (w.e.f. 15-9-2006).
3. Ins. by Act 3 of 1993, s. 2 (w.e.f. 5-1-1993).
4. Subs. by Act 16 of 1999, s. 2, for "the companion or the spouse shall be added in computing the limit of twenty-eight journeys specified in the proviso to that sub-section." (w.e.f. 22-3-1999).
5. Subs. by Act 40 of 2006, s. 4, for "thirty-two journeys" (w.e.f. 15-9-2006).
6. Ins. by Act 9 of 2004, s. 5 (w.e.f. 9-1-2004).
7. Subs. by Act 55 of 1958, s. 5, for section 6 (w.e.f. 30-12-1958).
8. Subs. by Act 16 of 1999, s. 3, for "air-conditioned two tier" (w.e.f. 22-3-1999).
9. Subs. by Act 29 of 1972, s. 3, for "For the purposes of this sub-section and section 6A" (w.e.f. 9-6-1972).
10. Ins. by Act 33 of 1977, s. 11 (w.e.f. 1-11-1977).

(*3*) Until a member is provided with a free railway pass under sub-section (*1*) he shall be, and shall be deemed always to have been entitled to an amount equal to one [1][first class air-conditioned or executive class of any train] fare for any journey of the nature referred to in sub-section (*1*) of section 4 performed by him by rail.

(*4*) A member who on ceasing to be a member surrenders his pass shall, if he performs any return journey by rail of the nature referred to in sub-section (*1*) of section 4, be entitled and be deemed always to have been entitled in respect of that journey to an amount equal to one [1][first class air-conditioned or executive class of any trains] fare.

(*5*) Nothing in this section shall be construed as disentitling a member to any travelling allowances to which he is otherwise entitled under the provisions of this Act.]

[2]**[6A. Free transit by Steamer**.—(*1*) [3][Without prejudice to the provisions of section 6, every member representing the Union territory of Andaman and Nicobar Islands or the Union territory of Lakshadweep shall—

(*a*) be provided with one free non-transferable pass which shall entitle him to travel at any time by the highest class by steamer to and from any part of his constituency and any other part of his constituency or the nearest part in the main land of India; and

(*b*) be entitled to an amount equal to the fare by air from his usual place of residence to the nearest airport in the main land of India [4][and back]:]

Provided that nothing in this sub-section shall be construed as absolving the member from payment of any diet charges payable by him during such travel.

(*2*) A free steamer pass issued to a member under sub-section (*1*) shall be valid for the term of his office and on the expiration of his term, the pass shall be surrendered to the Secretary of the House of the People:

Provided that where any such pass is issued to a new member before he takes his seat in the House of the People, he shall be entitled to use the pass for attending a session of that House for taking his seat therein.

(*3*) Until a member is provided with a free steamer pass under sub-section (*1*), he shall be entitled to an amount equal to one fare (without diet) for the highest class for any journey of the nature referred to in sub-section (*1*) of section 4 performed by him by steamer.

(*4*) A member who on ceasing to be a member surrenders the steamer pass issued to him under sub-section (*1*), shall, if he performs any return journey by steamer of the nature referred to in sub-section (*1*) of section 4, be entitled in respect of that journey to an amount equal to one fare (without diet) for the highest class.

(*5*) Nothing in this section shall be construed as disentitling a member to any travelling allowances to which he is otherwise entitled under the provisions of this Act.

(*6*) In addition to [5][the facilities provided to a member] under sub-section (*1*), he shall also be entitled—

(*i*) to one free pass for one person to accompany the member and travel by the [6][highest class] by steamer to and from any part of the constituency of the member and any other part of his constituency or the nearest port in the main land of India; [7][or]

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1. Subs. by Act 16 of 1999, s. 3, for "air-conditioned two-tier" (w.e.f. 22-3-1999).
2. Ins. by Act 29 of 1972, s. 4 (w.e.f. 9-6-1972).
3. Subs. by Act 60 of 1988, s. 5, for the opening paragraph (w.e.f. 1-4-1988).
4. Ins. by Act 30 of 1989, s. 2 (w.e.f. 28-8-1989).
5. Subs. by Act 60 of 1988, s. 5, for "a free steamer pass issued to a member" (w.e.f. 1-4-1988).
6. Subs. by s. 5, *ibid*., for "lowest class" (w.e.f. 1-4-1988).
7. Subs. by s. 5, *ibid*., for "and" (w.e.f. 1-4-1988).

(*ii*) to one free non-transferable pass for the spouse, if any, of the member to travel by the highest class by steamer to and from the usual place of residence of the member in his constituency and the nearest port in the main land of India, [1][at any time between the Island and the main land of India; and]

[2][(*iii*) to an amount equal to the fare by air either for the spouse, if any, of the member or for one person to accompany the member from the usual place of residence in the Island to the nearest airport of the main land of India [3][and back]:

Provided that nothing in this sub-section shall be construed as absolving the person accompanying the member or the spouse of the member from payment of any diet charges payable by such person or spouse during such travel.]

[4]**[6AA. Special facility to members from Ladakh**.—(*1*) Without prejudice to the provisions of section 6, every member who has his ordinary place of residence in the Ladakh area of the State of Jammu and Kashmir* shall be entitled to an amount equal to the fare by air for each single journey by air performed by him from any airport in Ladakh to the airport in Delhi and back at any time.

(*2*) In addition to the air travel provided to a member under sub-section (*1*), he shall also be entitled to an amount equal to the fare by air for each single journey by air performed by the spouse, if any, of the member or one person to accompany such member, from any airport in Ladakh area to the airport in Delhi and back at any time.]

[5]**[6B. Travel facilities to members**.—[6][(*1*)] Without prejudice to the other provisions of this Act, every member shall be entitled to—

(*i*) one free air-conditioned two-tier class railway pass for one person to accompany the member when he travels by rail; and

(*ii*) free travel by any railway in India in first class air-conditioned or executive class in any train with the spouse, if any, of the member from any place in India to any other place in India and if such journey or part thereof is performed by air, from any place other than usual place of residence of the member, to Delhi and back, to an amount equal to the fare by air for such journey or part thereof or the amount equal to the journey performed by air from the usual place of the residence of the member to Delhi and back, whichever is less:]

[7][Provided that where a member has no spouse, such member may be accompanied by any person in place of the spouse, and notwithstanding anything containing in clause (*i*), the person so accompanying shall be entitled to every facility available to the spouse.]

[8][(*2*) Notwithstanding anything contained in clause (*ii*) of sub-section (*1*), the spouse of a Member shall be entitled to travel,—

(*a*) any number of times, by railway in first class air-conditioned or executive class in any train from the usual place of residence of the Member to Delhi and back; and

(*b*) when Parliament is in session, by air or partly by air and partly by rail, from the usual place of residence of the Member to Delhi or back, subject to the condition that the total number of such air journeys shall not exceed eight in a year:

Provided that where any such journey or part thereof is performed by air from any place other than the usual place of residence of the Member to Delhi and back, then, such spouse shall be entitled to an amount equal to the fare by air for such journey or part thereof, as the case may be, or to the

1. Subs. by Act 60 of 1988, s. 5, for "once during every session" (w.e.f. 1-4-1988).
2. Ins. by s. 5, *ibid.* (w.e.f. 1-4-1988).
3. Ins. by Act 30 of 1989, s. 2 (w.e.f. 28-8-1989).
4. Ins. by Act 60 of 1988, s. 6 (w.e.f. 1-4-1988).
5. Subs. by Act 16 of 1999, s. 4, for section 6B (w.e.f. 22-3-1999).
6. Section 6B renumbered as sub-section (*1*) by Act 17 of 2000, s. 3 (w.e.f. 7-6-2000).
7. Ins. by s. 3, *ibid*. (w.e.f. 7-6-2000).
8. Subs. by Act 37 of 2010, s. 4, for sub-section (*2*) (w.e.f. 1-10-2010).

*. *Vide* notification No. S.O. 3912(E), dated 30th October, 2019, this Act is made applicable to the Union territory of Jammu and Kashmir and the Union territory of Ladakh.

amount equal to the journey performed by air from the usual place of residence of the Member to Delhi and back, whichever is less.]

[1][**6C. Air travel facilities in certain circumstances**.—Without prejudice to the other provisions of this Act, where during any part of a year the usual place of residence of a member in his constituency is inaccessible to or from any place outside his constituency by road, rail or steamer due to climatic conditions, but there is air service between any place in his constituency, and the nearest place, having rail service, outside his constituency, such member shall be entitled to travel to and from by air from the nearest place in his constituency where there is air service to such place having rail service:

Provided that where the nearest place having air service is outside his constituency, such member shall be entitled to travel to and from by air only from such place to the nearest place having rail service.]

[2][**6D. Special facilities to blind and physically incapacitated Members**.—A member who is blind or who is, in the opinion of the Chairman of the Council of States or, as the case may be, the Speaker of the House of the People, so incapacitated physically as to require the facility of an attendant shall, with respect to each such journey—

(*i*) by air as is referred to in clause (*b*) of sub-section (*1*) of section 4 or clause (*b*) of sub-section (*1*) or sub-section (*2*) of section 5 or section 6C which he performs along with an attendant be entitled (in addition to the allowances which he is entitled under section 4 or section 5 or, as the case may be, section 6C) to an amount equal to one fare by air for such journey;

(*ii*) by rail as is referred to in section 4, section 5, section 6 or section 6B be allowed the facility of the one free railway pass for an attendant, to attend such member, in the same class in which such member travels *in lieu* of one free air-conditioned two-tier class railway pass under clause (*i*) of sub-section (*1*) of section 6B.]

[3][(*iii*) by road as is referred to in section 4 or section 5, be entitled to an amount equal to one road mileage.]

7. Allowances during short intervals between the termination of one session and the commencement of another session, etc.—[4][Where the intervals between the adjournment of a House of Parliament or, as the case may be, one sitting of a committee and the re-assembly of that House or the next sitting of the committee at the same place] does not exceed [5][five days] and the member concerned elects to remain at such place during the interval, he shall be entitled to draw for each day of residence at such place a daily allowance at the rate specified in section 3:

Provided that, if the member leaves such place during the interval, his absence from the place shall be treated as absence during a session of a House of Parliament or a sitting of the committee, as the case may be, and the provisions of section 5 shall apply accordingly.

[6][**8. Constituency allowance and amenities**.—A member shall be entitled to such constituency allowance [7][office expense allowance] and to such medical facilities for himself and for members of his family and to such housing, telephone, water, electricity facilities or such amount in cash *in lieu* of all or any of such facilities, as may be prescribed by rules under section 9:]

[8][Provided that where the House of the People is sooner dissolved before completing five years from the date appointed for its first meeting, the member of such House may be allowed without

1. Ins. by Act 105 of 1976, s. 6 (w.e.f. 9-9-1976).
2. Subs. by Act 17 of 2000, s. 4, for section 6D (w.e.f.7-6-2000).
3. Ins. by Act 40 of 2006, s. 5 (w.e.f. 17-5-2004).
4. Subs. by Act 55 of 1958, s. 6, for "Where the interval between the termination of one session of a House of Parliament or, as the case may be, one sitting of a committee and the commencement of another session or sitting at the same place" (w.e.f. 30-12-1958).
5. Subs. by Act 40 of 2006, s. 6, for "seven days" (w.e.f. 15-9-2006).
6. Subs. by Act 74 of 1985, s. 5, for section 8 (w.e.f. 26-12-1985).
7. Ins. by Act 60 of 1988, s. 8 (w.e.f. 1-4-1988).
8. Ins. by Act 17 of 2000, s. 5 (w.e.f. 26-4-1999).

payment, to such extent of the quota of free telephone calls or free units of electricity or free units in kilolitres of water, available to him for a year in which such dissolution of such House takes place, as remains unutilised on the date of such dissolution, to avail during the period commencing on and from the date of such dissolution and ending on the date immediately preceding the date on which the notification under section 73 of the Representation of the People Act, 1951 (43 of 1951) has been issued for the constitution of subsequent House of the People subject to the condition that such Member shall be liable to pay for any telephone calls, in excess of the calls so allowed to be made during such period on the telephone provided to him by the Government for such purpose, and units of electricity or kilolitres of water consumed in excess of the free electricity or kilolitres of water allowed:

Provided further that where the member referred to in the first proviso becomes member of the subsequent House of the People as referred to be constituted in that proviso, then, he shall be entitled for the adjustment of the excess telephone calls, units of electricity, kilolitres of water for the payment of which he is liable under the first proviso against the quota of free telephone calls, units of electricity and kilolitres of water for which he is entitled during the first year of the duration of such subsequent House of the People.]

[1][**8A. Pension**.—[2][(*1*) With effect from the 18th day of May, 2009, there shall be paid a pension of [3][twenty-five thousand rupees] per mensem to every person who has served for any period as a Member of the Provisional Parliament or either House of Parliament:

Provided that where a person has served as a Member of the Provisional Parliament or either House of Parliament for a period exceeding five years, there shall be paid to him an additional pension of [4][two thousand rupees] per mensem for every year served in excess of five years.

Explanation.—For the purpose of this sub-section, "Provisional Parliament" shall include the body which functioned as the Constituent Assembly of the Dominion of India immediately before the commencement of the Constitution.]]

[5][(*1A*) The pension and additional pension to every person shall be increased after every five years commencing from 1st April, 2023 on the basis of Cost Inflation Index provided under clause (*v*) of *Explanation* to section 48 of the Income-tax Act, 1961 (43 of 1961).]

[6]* * * * *

(*2*) Where any person entitled to pension under sub-section (*1*),—

(*i*) is elected to the office of the President or Vice-President or is appointed to the office of the Governor of any State or the Administrator of any Union territory; or

(*ii*) becomes a member of the Council of States or the House of the People or any Legislative Assembly of a State or Union territory or any Legislative Council of a State or the Metropolitan Council of Delhi constituted under section 3 of the Delhi Administration Act, 1966 (19 of 1966); or

(*iii*) is employed on a salary under the Central Government or any State Government or any corporation owned or controlled by the Central Government or any State Government, or any local authority or becomes otherwise entitled to any remuneration from such Government, corporation or local authority,

1. Ins. by Act 105 of 1976, s. 7 (w.e.f. 9-9-1976).
2. Subs. by Act 37 of 2010, s. 5, for sub-section (*1*) (w.e.f. 1-10-2010).
3. Subs. by Act 13 of 2018, s.144, for "twenty thousand rupees" (w.e.f. 1-4-2018).
4. Subs. by s. 144, *ibid*., for "fifteen hundred rupees" (w.e.f. 1-4-2018).
5. Ins. by s.144, *ibid*. (w.e.f. 1-4-2018).
6. Sub-section (*1A*) and the *Explanation* thereunder omitted by Act 40 of 2006, s. 7 (w.e.f. 15-9-2006).

such person shall not be entitled to any pension under sub-section (*1*) for the period during which he continues to hold such office or as such member, or is so employed, or continues to be entitled to such remuneration:

Provided that where the salary payable to such person for holding such office or being such member or so employed, or where the remuneration referred to in clause (*iii*) payable to such person, is, in either case, less than the pension payable to him under sub-section (*1*), such person shall be entitled only to receive the balance as pension under that sub-section.

[1][(*3*) Where any person entitled to pension under sub-section (*1*) is also entitled to any other pension, such person shall be entitled to receive the pension under sub-section (*1*) in addition to such other pension.]

(*4*) In computing the number of years, for the purposes of sub-section (*1*), the period during which a person has served as a Minister as defined in the Salaries and Allowances of Ministers Act, 1952 (58 of 1952) or [2][as an officer of Parliament] as defined in the Salaries and Allowances of Officers of Parliament Act,1953 (20 of 1953), (other than the Chairman of the Council of States) [3][or as a Leader of the Opposition as defined in the Salary and Allowances of Leaders of Opposition in Parliament Act, 1977 (33 of 1977), or has served in all or any two of such capacities] by virtue of his membership in the House of the People or in the Council of States shall also be taken into account.]

[4][**8AA. Travel facility to ex-Members**.— [5][(*1*)] Every person who is not a sitting Member but has served for any period as a Member of either House of Parliament shall be,—

(*a*) with effect from the 18th day of January, 1999, entitled along with a companion to travel in any train by any railway in India in air-conditioned two-tier class; or

(*b*) entitled to travel alone in any train by any railway in India in air-conditioned first class,

without payment of any charges on the basis of an authorisation issued for this purpose by the Secretariat of either House of Parliament, as the case may be.]

[6][(*2*) Every person who is not a sitting member but has served for any period as a member from the Andaman and Nicobar Islands or the Lakshadweep, shall be entitled to travel by the highest class of accommodation in any steamer sailing between the Andaman and Nicobar Islands or, as the case may be, the Lakshadweep and the main land territory of India in addition to the facilities available to such member under sub-section (*1*), without payment of any charges on the basis of an authorisation issued for this purpose by the Secretariat of either House of Parliament.]

[7]**[8AB. Rounding off period of pension.—**Where the period for which the pension is payable under this Act contains a part of a year, then, if such part is nine months or more, it shall be reckoned equivalent to complete one year for the purpose of payment of additional pension under sub-section (*1*) of section 8A and if such part is less than nine months, it shall be ignored.]

[8]**[8AC. Family pension**.—(*1*) On the death of a member of either House of Parliament during his term of office, his spouse, if any, or dependent of such member shall be paid during the remaining period of life of such spouse or, as the case may be, such dependent so long as such dependent continues to be a dependent within the meaning of clause (*aa*) of section 2, family pension equivalent to one-half of the pension which such member of Parliament would have received had he retired:

Provided that no such family pension shall be payable to a dependent if such dependent is a sitting member of Parliament or is drawing pension under section 8A.

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1. Subs. by Act 48 of 1993, s. 4, for sub-section (*3*) (w.e.f. 9-6-1993).
2. Subs. by Act 33 of 1977, s. 11, for "an officer of Parliament" (w.e.f. 1-11-1977).
3. Subs. by s. 11, *ibid.*, for "or both" (w.e.f. 1-11-1977).
4. Subs. by Act 9 of 2004, s. 7, for section 8AA (w.e.f. 9-1-2004).
5. Section 8AA numbered as sub-section (*1*) by Act 40 of 2006, s. 8 (w.e.f. 15-9-2006).
6. Ins. by s. 8, *ibid.* (w.e.f. 15-9-2006).
7. Ins. by Act 9 of 2004, s. 8 (w.e.f. 9-1-2004).
8. Ins. by Act 40 of 2006, s. 9 (w.e.f. 15-9-2006).

(*2*) The family pension payable under sub-section (*1*) shall also be payable to the spouse or dependent of a person who was a member of either House of Parliament or the Provisional Parliament at any time [1]*** and died after serving as such member:

Provided that such spouse or dependent is not drawing any pension under this Act or is not entitled to draw family pension under the proviso to sub-section (*1*):

Provided further that no person shall be entitled to claim arrears of any family pension under this sub-section in respect of a period before the commencement of the Salary, Allowances and Pension of Members of Parliament (Amendment) Act, 2006 (40 of 2006).

Explanation.—For the purposes of this section, "Provisional Parliament" shall include the body which functioned as the Constituent Assembly of the Dominion of India immediately before the commencement of the Constitution.]

[2][**8B. Advances for purchase of conveyance**.—There may be paid to a member by way of re-payable advance such sum of money not exceeding [3][four lakh rupees] as may be determined by rules made in this behalf under section 9 for the purchase of a conveyance.]

9. Power to make rules.—(*1*) For the purpose of making rules under this section, there shall be constituted a Joint Committee of both Houses of Parliament consisting of five members from the Council of States nominated by the Chairman and ten members from the House of the People nominated by the Speaker.

(*2*) The Joint Committee constituted under sub-section (*1*) shall elect its Chairman and shall have power to regulate its procedure.

[4][(*2A*) A member of the Joint Committee shall hold office as such member for one year from the date of his nomination and any casual vacancy in the Joint Committee may be filled by nomination by the Chairman of the Council of States or the Speaker of the House of the People, as the case may be.

Explanation.—In the case of a member of a Joint Committee holding office as such immediately before the commencement of the Salaries and Allowances of Members of Parliament (Amendment) Act, 1958 (55 of 1958), the period of one year shall be computed from the date of such commencement.]

(*3*) The Joint Committee constituted under sub-section (*1*) may [4][after consultation with the Central Government] make rules to provide for all or any of the following matters, namely:—

(*a*) the routes for the performance of any journey;

[5][(*aa*) the person who may be specified as dependent under sub-clause (*g*) of clause (*aa*) of section 2;]

(*b*) the manner in which fractions of a day shall be dealt with for the purpose of determining the daily allowance admissible for that day;

(*c*) the travelling allowance admissible where a member is provided with free transit for the whole or any part of a journey [4][and the reduction of the daily allowance where a member is provided with free board or lodging at the expense of the Government or a local authority];

[6][(*cc)* the rate at which road mileage shall be paid under sub-clause (*ii*) of clause (*c*) of sub-section (*1*) of section 4;]

[5][(*ccc*) the transit accommodation and the period for which such accommodation may be provided under section 5A;]

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1. The words, brackets and figures "before the commencement of the Salary, Allowances and Pension of Members of Parliament (Amendment) Act, 2006 (40 of 2006)" omitted by Act 13 of 2018, s. 145 (w.e.f. 1-4-2018).
2. Ins. by Act 74 of 1985, s. 7 (w.e.f. 26-12-1985).
3. Subs. by Act 37 of 2010, s. 6, for "one lakh rupees" (w.e.f. 1-10-2010).
4. Ins. by Act 55 of 1958, s. 8 (w.e.f. 30-12-1958).
5. Ins. by Act 9 of 2004, s. 9 (w.e.f. 9-1-2004).
6. Ins. by Act 61 of 1982, s. 4 (w.e.f. 6-11-1982).

(*d*) the travelling allowance admissible where the place from which a member commences his journey or to which he returns is not his usual place of residence;

[1][(*dd*) the travelling allowance admissible in respect of journeys performed by any vessel where there is no regular steamer service;

(*ddd*) the travelling and daily allowances admissible for journeys performed by a member in the course of a tour outside India undertaken in connection with his duties as such member;]

(*e*) the form in which certificates, if any, shall be furnished by a member for the purpose of claiming any allowance under this Act;

[2][(*ee*) the form in which certificates, if any, shall be furnished by any person for the purpose of claiming any pension under this Act;]

[3][(*f*) the constituency allowance and medical and other facilities mentioned in section 8 and the amount to be paid in cash in lieu of such facilities;

(*ff*) the amount which may be paid by way of repayable advance for the purchase of conveyance; the rate of interest thereon and the mode of recovery of such amount and interest thereon; and]

[4][(*fff*) to provide for carry forward of unutilised free telephone calls pertaining to any year beginning on or after the 1st day of April, 2002 to any subsequent year;]

(*g*) generally for regulating the payment of [5][daily and travelling allowances and pension] under this Act].

(*4*) Any rules made under sub-section (*3*) shall not take effect until they are approved and confirmed by the Chairman of the Council of States and the Speaker of the House of the People and are published in the Official Gazette, and such publication of the rules shall be conclusive proof that they have been duly made.

10. [*Validation of payment of certain travelling allowances*.] *Rep. by the Repealing and Amending Act*, 1960 (58 *of* 1960), *s*. 2 *and the First Schedule*.

1. Ins. by Act 55 of 1958, s. 8 (w.e.f. 30-12-1958).
2. Ins. by Act 105 of 1976, s. 8 (w.e.f. 9-9-1976).
3. Subs. by Act 74 of 1985, s. 8, for "clause (*f*)" (w.e.f. 26-12-1985)
4. Ins. by Act 9 of 2004, s. 9 (w.e.f. 9-1-2004).
5. Subs. by Act 105 of 1976, s. 8, for "daily and travelling allowances" (w.e.f. 9-9-1976).

STATEMENT OF OBJECTS AND REASONS

Under article 106 of the Constitution Members of Parliament are entitled to receive such salaries and allowances as may from time to time be determined by Parliament by law and, until provision that respect is so made, allowances at such rates and upon such conditions as were immediately before the commencement of the Constitution applicable in the case of members of the Constituent Assembly.

Parliament has not enacted any law so far with the result that Members have continued to receive allowances at rates which applied to the Members of the Constituent Assembly despite certain changes which have since occurred in the classification of accommodation on railways. This Bill seeks to establish the basis on which salary and allowances should be drawn by Members of Parliament.

NEW DELHI; S.N.SINHA.

The 3rd *May,* 1954.

IndiaCode